

Bail of 14 Reds Voided Again; New Bonds Required Today

Ryan Disqualifies Civil Rights Congress— Gives Defendants Until Noon to Raise \$165,000 Elsewhere or Be Jailed

By RUSSELL PORTER

Federal Judge Sylvester Ryan yesterday disqualifying the Civil Rights Congress and its trustees yesterday for the second time, effective at noon today. He ordered them to post \$165,000 substitute bail by that hour or go back to jail for the third time since their arrest. If they do not appear in court, he warned, their present bail will be forfeited, and warrants will be issued for their arrest.

Of the canceled bail, \$160,000 had been put up by the organization calling itself the Civil Rights Congress bail fund which is listed by the Attorney General as a Communist front. The additional \$5,000 had been put up personally by one of its trustees, Frederick Vanderbilt Field, millionaire helper of Communists.

Field is free on \$10,000 temporary bail he posted after having been sentenced to ninety days in jail for criminal contempt of court in refusing to name the members of the bail fund or produce its books and records.

Judge Ryan issued a final order

from acting as bondsmen. He gave as his reason that they had "hindered and impeded" the court in its search for Communist bail-jumpers, and had failed to prove their title or authority to pledge bail collateral. They had proved themselves, he found, "unworthy of the trust of this court."

He also rejected \$20,000 bail tendered for Dashiell Hammett, mystery-story writer, and W. Alphaeus Hunton, secretary of the Council on African Affairs, listed by the Attorney General as a Communist front, because of refusal to tell the source of this bail. Hammett and Hunton, both bail fund trustees, are under six-month sentences for criminal contempt for refusing to give the court information about the bail fund and its members.

As a result of the disqualification order, bail was also revoked yesterday in the first of a series of deportation cases, estimated at

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thirty or more, in which bail was posted by the Civil Rights Congress.

This was the case of Peter Iarisiades, 47-year-old Greek newspaper man accused of former membership in the Communist party. Federal Judge Alexander Holtzoff canceled his \$5,000 bail, and he was taken to Ellis Island.

"The so-called bail fund of the Civil Rights Congress should not be accepted as surety," Judge Holtzoff said.

The fourteen Communist party functionaries whose bail was revoked were among twenty-one indicted June 20 on charges of criminal conspiracy to teach and advocate the overthrow of the Government by force and violence. Seventeen were arrested and jailed the same day, but four escaped and are still fugitives from justice.

United States Attorney Irving H. Saypol had refused to accept Civil Rights Congress bail, but was directed to do so by the Circuit Court of Appeals on June 27. But the court gave him the right to reopen the case on discovery of new evidence.

On July 2, eleven to pleaders convicted in 1949 of the same conspiracy for which the twenty-one have been indicted, had been ordered to surrender to begin serving their jail sentences. Only seven did so. Four jumped bail of \$20,000 each, and are still missing. The Civil Rights Congress had furnished \$260,000 bail for the eleven.

Judge Ryan then began an inquiry to determine what the bondsmen knew about the fugitive four. This led to the contempt of court sentences against Field, Hammett and Hunton for refusal to aid in the investigation.

It also supplied new evidence on which the Federal prosecutor moved to disqualify the Civil Rights Congress and revoke the bail of the fourteen. Three of the seventeen have won freedom on bail from other sources.

Last Wednesday Judge Ryan issued an interim order disqualifying the Civil Rights Congress and revoking its bail. The fourteen, who had been freed by the Court of Appeals on June 27, then were returned to jail.

But on Thursday, Judge Learned Hand of the Court of Appeals won freedom for them again by ruling that Judge Ryan had no power to order revocation of the bail until he completed his proceedings. Yesterday Judge Ryan completed his proceedings and handed down his final order.

Harold I. Cammer and Michael I. Begun of defense counsel argued before Judge Ryan yesterday that when cash or negotiable Government bonds were posted as bail, as by the Civil Rights Congress and its trustees, no further suretyship was required. They said the rule of the court permitted the acceptance of cash or Government securities "in lieu" of surety.

Therefore they held the refusal of the trustees to testify about the surety to be immaterial. They repeatedly insisted that the Government's demand for surety was a mere "technicality." It amounted to "unusual if not cruel punishment," they contended, and an unconstitutional demand for "excessive bail."

For the Government, Mr. Saypol replied that defense counsel had "wholly distorted the picture of the bail relationship." The Government is not a mere "stakehold-

er," he held, but makes a contract with the bondsman whereby the latter is obligated as surety to make the defendants available when required by the court.

The prosecutor charged that the trustees of the Civil Rights Congress, by refusing to help find the bail jumpers, had "dealt unfairly with the court." Therefore, he argued, the court had no obligation to deal further with the Civil Rights Congress.

Judge Ryan, in his decision, recalled that in posting bail for the Communists, the Civil Rights Congress had filed a trust agreement purporting to authorize its bail fund trustees to deposit securities owned by the fund as bail collateral. These securities had been lent to the fund or had been bought by the fund with monies lent by its members.

This trust agreement named Hammett as chairman of the bail fund. Yet, Judge Ryan pointed out, Hammett had refused to admit he was either trustee or chairman; to identify his own signature on the trust agreement; to name its contributing members, or to give evidence about or produce its books and records.

"There is a serious question of the legality and validity of this trust agreement," Judge Ryan found. "The bail fund and its trustees have not established satisfactory title and ownership or their authority to deposit these securities as bail."

Judge Ryan also pointed out that the trustees had failed to produce the fugitive four who had forfeited \$80,000 bail, or the fugitive Gerhart Eisler, German Communist who in 1949 jumped \$23,500 bail here and fled the country on the Polish steamship Batory. Mere seizure of the forfeited bonds, he added, did not satisfy the interests of justice, which required the appearance of the fugitives in court.

After announcing his decision, Judge Ryan assigned six new defense counsel to the seventeen. The new counsel are Mrs. Carol King, Leonard Boudin, Abraham Pomerantz, Abraham Unger, Mrs. Mary Kaufman and Victor Rabinowitz. The court denied an application by Mr. Cammer and Mr. Begun to withdraw from the case.

Elizabeth Gurley Flynn, one of the defendants, told the court the seventeen hoped to retain counsel of their own choice as soon as they could. Judge Ryan extended the time for filing motions attacking the indictment until Aug 2, so that

newly assigned counsel could familiarize themselves with the case, but warned against "dilatatory tactics."

Chief Judge Thomas W. Swan in the Court of Appeals reserved decision until today on defense applications for a stay of execution of the bail revocation, and for an order directing the acceptance of bail for Hammett and Hunton.